An official website of the United States government Here's how you know

In This Section +

Lost, Delayed, or Damaged Baggage

While the vast majority of airline passengers' checked bags arrive at their destination on time and in the condition received, checked bags may occasionally become lost, delayed, or damaged in transit. Under DOT regulations (for domestic travel) and international treaties (for international travel), airlines are required to compensate passengers if their bags are lost, delayed, or damaged.

Top Issues

- Damaged Baggage
- Delayed Baggage
- Lost Baggage
- Limits on Baggage Liability
- Refunds for Lost or Significantly Delayed Baggage
- Assistive Devices
- Baggage Tips

Damaged Baggage

What are airlines' responsibilities when they damage your baggage?

- Airlines are responsible for repairing or reimbursing a passenger for damaged baggage and/or its contents when the damage occurs while the bag is under the airline's control during transportation (subject to maximum limits on liabilities). Passengers should file a baggage claim with their airline **as soon as possible**.
- Airlines are not responsible for pre-existing damage to the bag or if the damage was caused by improper packing.
- When the damage to the bag cannot be repaired, airlines will negotiate a compensation amount based on the value of the bag and its depreciation.

Can the airlines exclude liability for certain items?

- Airlines often exclude liability for certain categories of items (for example: fragile items, electronics, cash, perishable items, other valuables, etc.). These exclusions are typically listed in the airlines' contracts of carriage.
- For **DOMESTIC** travel, airlines are not required to compensate passengers for items they have excluded in their contracts of carriage.
- For **INTERNATIONAL** travel (including the domestic segment of an international itinerary), airlines are responsible for these items if they have accepted them for transportation. This applies even if passengers did not disclose, when they checked-in, that these items were packed in the bag.
- Passengers may wish to consider purchasing additional insurance for valuable items.

What about damage to the wheels, handles, or straps of baggage?

- Although airlines are not required to cover fair wear and tear, airlines cannot exclude liability for damage to wheels, handles, straps, and other components of checked baggage.

Back to t

Delayed Baggage

What should a passenger do if his or her bag is missing after taking a flight?

- When a checked bag does not arrive at its destination, airlines are responsible for locating the bag. Airlines have tracking systems in place to try to identify the bag's location.
- Some airlines now offer applications for cell phones, tablets, and other electronic devices, which provide passengers with data on the location of their baggage. It may be helpful to use this technology to locate your baggage, if available.
- Passengers should file a baggage claim with their airline **as soon as possible**.
- Passengers should stay in close communication with the airline after filing a claim and during the baggage location process.

What are airlines' responsibilities when your bag is delayed?

- Airlines are required to compensate passengers for reasonable, verifiable, and actual incidental expenses that they may incur while their bags are delayed - subject to the maximum liability limits.
- Airlines are not allowed to set an arbitrary daily amount for interim expenses. For example, an airline cannot have a policy that they will reimburse a passenger up to only $50 for each day that a passenger's bag is delayed.

Back to top

Lost Baggage

When does an airline consider a bag lost?

- Airlines may have different policies to determine when a bag is officially lost. Most airlines will declare a bag lost between five and fourteen days after the flight, but this can vary from one airline to another.
- Whether your bag is declared lost may also depend on the type of itinerary (international vs. domestic), whether more than one airline is responsible for the flight, the airline's searching mechanism, and other circumstances.
- If an airline unreasonably refuses to consider a bag lost after it has been missing for an unreasonable period of time, the airline could be subject to enforcement action by the DOT.

What are the airlines' responsibilities when your bag is lost?

- Once an airline determines that your bag is lost, the airline is responsible for compensating you for your bags' contents - subject to depreciation and maximum liability limits.
- Airlines are also required to refund any fees you paid the airline to transport the bag that was lost.
- Airlines may require receipts or other proof for valuable items that were in the lost bags.

Back to top

Limits on Baggage Liability

Domestic Baggage Liability

- For **DOMESTIC** flights, DOT regulation allows airlines to limit their liability for a lost, damaged, or delayed bag. Airlines are free to pay more than the limit, but are not required to do so.
- The maximum liability amount allowed by the regulation is **$4,700** per passenger.

International Baggage Liability

- For most **INTERNATIONAL** flights, a treaty called the Montreal Convention applies to the carriage of baggage. The maximum baggage liability for flights covered by the Montreal Convention is currently **1,519 Special Drawing Rights** (approximately $2,175.00 US) per passenger. This is the most that airlines must pay a passenger for a lost, damaged, or delayed bag. Airlines are free to pay more than the limit, but are not required to do so.

- The Montreal Convention's international baggage liability limit is reviewed for inflationary adjustment every five years by the International Civil Aviation Organization (ICAO).

- In the few situations when the Montreal Convention does not apply to travel to and from the United States, an older treaty called the "Warsaw Convention" may apply.

Back to top

Refunds for Lost or Significantly Delayed Baggage

- A consumer is entitled to a refund if the consumer paid a baggage fee and his or her baggage has been declared lost by the airline or has been significantly delayed.

- When is a checked bag considered "lost?"
  - Airlines may have different policies to determine when a bag is officially lost. Most airlines will declare a bag lost between five and fourteen days after the flight, but this can vary from one airline to another.
  - If an airline unreasonably refuses to consider a bag lost after it has been missing for an excessive period of time, the airline could be subject to enforcement action by the DOT.

- When is a checked bag considered "significantly delayed?"
  - For domestic flights, a bag is considered to have been "significantly delayed" if the bag is not delivered within 12 hours after your flight has arrived;
  - For international flights (a flight between a U.S. airport and a foreign airport), a bag is considered to have been significantly delayed if the bag is not delivered:
    - within 15 hours after your flight has arrived if your flight is 12 hours or less in duration, and
    - within 30 hours if your flight is more than 12 hours in duration;
  - To calculate how many hours your bag has been delayed, the clock ends when you pick up the bag from the arrival airport or the bag has been delivered to a location that you and the airline have agreed on.
  - In order to receive a refund of the baggage fee for a significantly delayed bag, you must file a mishandled baggage report with the airline. You are encouraged to file the report as soon as you learn that your bag did not arrive with you at the destination. Once the airline has the mishandled baggage report on file and the bag delay becomes "significant" as described above, a refund of the bag fee should be issued to you automatically.

- Are there any exceptions that apply to refunding bag fees for lost or significantly delayed baggage?
  - Yes, there are some exceptions. An airline is not required to provide you with a refund of your checked baggage fee for a significantly delayed bag and/or is not required to deliver your baggage on time in the following circumstances:
    - International Checked Baggage – If your baggage is significantly delayed because you failed to pick up and re-check your baggage at the first international entry point to the U.S.;
    - Failure to pick up a bag – If your baggage is significantly delayed because you failed to pick up a checked bag that arrived on time to your ticketed final destination (e.g., you voluntarily did not travel to the ticketed final destination or you left the airport without retrieving your bag); and
    - Agreement with Airline – If you voluntarily agree to travel without your checked bag on the same flight you are taking because you check-in late or are flying standby and agree to a new baggage delivery date and location.

    - Note: In these situations, airlines must not require you to waive your right to a refund of the bag fee if your baggage is lost and must not require you to waive your right to reimbursement of incidental expenses arising from delayed bags beyond the agreed upon delivery date or from lost, damaged, or pilfered bags.
- For more information about refunds, please visit the Refunds webpage.

Back to top

Assistive Devices

An assistive device is any piece of equipment that assists a passenger with a disability in coping with the effects of his or her disability. These devices are intended to assist passengers with a disability to hear, see, communicate, maneuver, or perform other functions of daily life. Assistive devices include (but are not limited to):

- Crutches, Canes, and Walkers
- Braces/Prosthetics
- Wheelchairs
- Hearing aids
- Portable Oxygen Concentrators (POCs)
- Continuous Positive Airway Pressure (CPAP) machines
- Prescription medications and any medical devices needed to administer those medications, such as syringes or auto-injectors

Note: If you are not sure if your device is an assistive device, contact your airline's disability or special assistance desk.

- Assistive devices used by passengers with disabilities that are lost or damaged during **DOMESTIC** air travel are not subject to the rules limiting liability for lost or damaged baggage. On domestic flights, airlines' liability for lost or damaged assistive devices is the original purchase price of the assistive device. If an airline destroys or loses a $20,000 assistive device during a domestic flight, the airline is liable for $20,000. If an airline damages but doesn't destroy a $20,000 assistive device, then the airline is liable for the damage up to the cost of original purchase price.
- Assistive devices used by passengers with disabilities that are lost or damaged during **INTERNATIONAL** air travel are subject to the maximum liability limit set by the applicable international treaty.
- When a passenger's wheelchair or other assistive device must be disassembled for stowage during air transportation, the airline must return the assistive device in the same condition in which the airline accepted it, including making necessary repairs if the device is damaged.

Back to top

Baggage Tips

Although bags often pass through a maze of conveyor belts and baggage carts and can tumble around the aircraft cargo compartment, relatively few bags are damaged or lost each year. Below are a few packing tips and other precautions you can take to increase the likelihood that your bags will arrive to your destination on time and without issue.

Packing

- When possible, you should avoid packing certain items into your checked luggage or luggage that could be checked at the gate due to a lack of overhead bin space. A few examples include:
    - Small valuables: cash, credit cards, jewelry, an expensive camera.
    - Critical items: medicine, keys, passport, tour vouchers, business papers.
    - Irreplaceable items: heirlooms.

  - Fragile items: eyeglasses, glass containers.
- Consider packing items like those listed above in a carry-on bag. Additionally, avoid packing perishables in a checked bag, which can spoil if your bag is delayed.
- Make sure your checked baggage is labeled with your name, phone number, and email address. Almost all delayed bags turn up eventually. Proper labeling helps the airline contact you and return your delayed bag.

Check-In

- Don't check in at the last minute. Even if you make the flight, your bag may not. If you miss the airline's check-in deadline, the carrier might not assume liability for your bag if it is delayed or lost. If you have a choice, select flights that minimize the potential for baggage disruption. The likelihood of a bag going astray increases from #1 to #4 below (i.e., #1 is safest): 1) nonstop flight; 2) direct or 'through' flight (one or more stops, but no change of aircraft); 3) online connection (change of aircraft but not airlines); and 4) interline connection (change of aircraft and airlines)
- When you check in, remove straps and hooks from garment bags that you are sending as checked baggage. These can get caught in baggage processing machinery, causing damage to the bag.
- The airline will put a baggage destination tag on your luggage and will give you the bag identification tag (i.e., a label with a barcode) to use to identify your bag at your destination. Make sure you obtain a bag identification tag for every bag. Don't throw them away until you retrieve your bags as you may need to show them to security upon leaving the baggage-claim area.

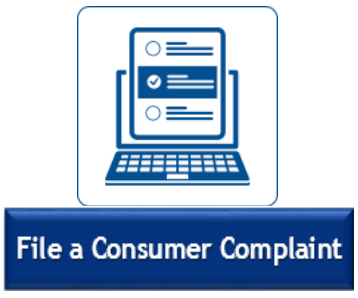
Claiming Your Bags

- If your bag arrives open, unlocked or visibly damaged, immediately check to see if any of the contents are missing or damaged. Report any problems to the airline before leaving the airport; insist on having a report created. Make a note of the date and time of the call, and the name and telephone number of the person you spoke with.

Traveling with a Pet

- Some U.S. airlines accept pets on aircraft and allow you to choose between flying with your pet in the aircraft cabin or transporting your pet in the cargo hold of the aircraft. Pet policies vary amongst airlines, and it is important for you to check the airline’s policies before travel.
- For additional information, please visit our Flying with a Pet webpage.

Back to top



Last updated: Wednesday, October 29, 2025

U.S. DEPARTMENT OF TRANSPORTATION
1200 New Jersey Avenue, SE
Washington, DC 20590
855-368-4200

WANT TO KNOW MORE?

Receive email updates about the latest in Safety, Innovation, and Infrastructure.

SUBSCRIBE NOW

ABOUT DOT

Meet the Secretary

Mission

Newsroom

Social Media

Leadership

Regulations

Transit Benefit Policy

Careers

Contact Us

OPERATING ADMINISTRATIONS

FAA

FHWA

FMCSA

FRA

FTA

GLS

MARAD

NHTSA

OIG

OST

PHMSA

RESEARCH AND TECHNOLOGY

Office of the Assistant Secretary for Research and Technology

Bureau of Transportation Statistics

Volpe Center

Ask-A-Librarian

PRIORITIES

Cybersecurity

Safety

Transformation

POLICIES, RIGHTS, AND LEGAL

USA.gov

Privacy Policy

FOIA

Budget and Performance

No FEAR Act

Cummings Act Notices

Ethics

Web Policies and Notices

Vulnerability Disclosure Policy

Digital Accessibility